

26STCV07039 26STCV07039

County: los-angeles

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Case Number: 26STCV07039 Hearing Date: September 15, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

DANIEL

DE LA VEGA,

Plaintiff,

vs.

CHARTER

COMMUNICATIONS, LLC, et al.,

Defendants.

Case No.:

26STCV07039

Hearing

Date:

September

15, 2026

ORDER DENYING MOTION TO COMPEL ARBITRATION

I. BACKGROUND

During

the course of Plaintiff Daniel De La Vega ("De La Vega") employment with Defendant Charter Communications, LLC ("Charter"), De La Vega was allegedly subjected to gender-based harassment by Defendants Gail Kodama ("Kodama") and Carmen Martinez ("Martinez"). De La Vega allegedly reported Kodama's unfair and illegal behavior to HR, resulting in Defendants retaliating against De La Vega and De La Vega's eventual termination. De La Vega sued Defendants for nine causes of action, including discrimination and retaliation.

On June 26, 2026, Charter and Kodama ("Moving Defendants") filed the instant motion to compel arbitration and to stay proceedings. De La Vega opposed. Moving Defendants replied.

II. EVIDENTIARY OBJECTIONS

The Court overrules all of De La Vega's objections to Moving Defendants evidence.

III. LEGAL STANDARD

Under both the Federal Arbitration Act and California law, arbitration agreements are valid, irrevocable, and enforceable, except on such grounds that exist at law or equity for voiding a contract. (*Winter v. Window Fashions Professions, Inc.* (2008) 166 Cal.App.4th 943, 947.) The party moving to compel arbitration must establish the existence of a written arbitration agreement between the parties. (Code Civ. Proc. § 1281.2[1].)

This is usually done by presenting a copy of the signed, written agreement to the court. "A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference." (Cal. Rules of Court, rule 3.1330.) The moving

party must also establish the other party's refusal to arbitrate the controversy. (§ 1281.2.) The filing of a lawsuit against the moving party for a controversy clearly within the scope of the arbitration agreement affirmatively establishes the other party's refusal to arbitrate the controversy. (Hyundai Amco America, Inc. v. S3H, Inc. (2014) 232 Cal.App.4th 572, 577.)

"Code of Civil Procedure section 1281.2

requires a trial court to grant a petition to compel arbitration "if the court determines that an agreement to arbitrate the controversy exists.'" (Avery v. Integrated Healthcare Holdings, Inc. (2013) 218 Cal.App.4th 50, 59 (Avery) (quoting § 1281.2).) Accordingly, "when presented with a petition to compel arbitration, the court's first task is to determine whether the parties have in fact agreed to arbitrate the dispute." (Ibid.) A petition to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (Id. at 71.) As with any other specific performance claim, "a party seeking to enforce an arbitration agreement must show the agreement's terms are sufficiently definite to enable the court to know what it is to enforce." (Ibid. [internal citations omitted].) "Only the valid and binding agreement of the parties, including all material terms well-defined and clearly expressed, may be ordered specifically performed." (Ibid.) An arbitration agreement "must be so interpreted as to give effect to the mutual intention of the parties as it existed at the time of contracting, so far as the same is ascertainable and lawful." (Civ. Code § 1636.) The language of the contract governs its interpretation if it is clear and explicit. (Civ. Code § 1368.) If uncertainty exists, "the language of a contract should be interpreted most strongly against the party who caused the uncertainty to exist." (Civ. Code § 1654.)

The party seeking to compel arbitration bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence. (Engalla v. Permanente Medical Group, Inc. (1997) 15 Cal.4th 951, 972.) It would then be plaintiff's burden, in opposing the motion, to prove by a preponderance of the evidence any fact necessary to her opposition. (Ibid.) "In these summary proceedings the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination. (Ibid.)

IV. DISCUSSION

Moving Defendants argue this action is subject to arbitration as De La Vega entered into a valid arbitration agreement with Charter's arbitration agreement to arbitrate all disputes relating to his employment with Charter. For the Court to grant a motion to compel arbitration, the moving party must demonstrate the existence of a valid arbitration agreement between the moving and refusing party, as well as the refusing party's refusal to arbitrate the controversy. (§ 1281.2.)

A. Existence of Arbitration Agreement Between Parties

On October 6, 2017, Charter implemented an employment-based arbitration program called "Solution Channel," which was announced to all non-union employees below the level of Executive Vice President not on leave of absence via company e-mail. (Mot., Fries Decl. ¶¶ 5-6.) The e-mail stated Charter had launched Solution Channel, a program that allowed parties to resolve employment-related legal disputes through binding arbitration. (Mot., Fries Decl. ¶¶ 7-8, Ex. A.) It also stated, "[u]nless you opt out of participating in Solution Channel within the next 30 days, you will be enrolled." (Ibid.) Any party who wished to opt out needed to access Charter's intranet site, Panorama, and click on a link to check a box labeled "I want to opt out of Solution Channel", enter their name, and click "SAVE." (Mot., Fries Decl. ¶¶ 9-13, Ex. C-D.)

Moving Defendants assert that De La Vega did not opt out of participating in the Solution Channel program, despite being mailed the October 6, 2017, e-mail notice. (Mot., Fries Decl. ¶¶ 19-20, Ex. E.) This was memorialized via a generated record by Charter. (Mot., Fries Decl. ¶ 20, Ex. E.)

While a failure to opt-out can establish an agreement to arbitrate, the party moving to arbitrate must prove that the other party received proper notice of the pending arbitration agreement and the ability to opt out, as a form of implied acceptance. (Craig v. Brown & Root, Inc. (2000) 84 Cal.App.4th 416, 420.) Therefore, Moving Defendants have the burden of establishing De La Vega was put on notice of the initial agreement.

The Court finds Moving Defendants have not sufficiently met their burden of demonstrating De La Vega received notice of the arbitration

agreement. Moving Defendants' copy of the e-mail allegedly sent to De La Vega lacks any information as to whom it was sent; it only contains the body of the text. (Mot., Fries Decl. ¶ 7, Ex. A.) In support of the assertion De La Vega received the 2017 e-mail, Moving Defendants only provide as follows: "[Fries has] access to and [has] reviewed the list of the 2017 Employees to whom the Announcement was emailed on October 6, 2017, and [has] confirmed that Daniel De La Vega was included in this distribution list." While this is not barred under Evidence Code section 1523, as asserted by De La Vega, as it is not oral testimony, the Court does not find that Fries provided sufficient evidence of mailing via attestation when documentary records of the mailing to De La Vega allegedly exist. This is especially relevant as De La Vega submitted a declaration attesting that he does not recall ever receiving the subject e-mail. (Opp., De La Vega Decl. ¶ 7.)

"[I]f a party proves that a letter was mailed, the trier of fact is required to find that the letter was received in the absence of any believable contrary evidence. However, if the adverse party denies receipt, the presumption is gone from the case. The trier of fact must then weigh the denial of receipt against the inference of receipt arising from proof of mailing and decide whether or not the letter was received." (Slater v. Kehoe (1974) 38 Cal.App.3d 819, 832, fn. 12.)

As Moving Defendants' proof of e-mailing is limited to Fries's recollection of a mailing list, and De La Vega's opposition is limited to his recollection of not receiving an e-mail, the Court does not find either side substantially more likely to be accurate. Moving Defendants have not met their burden of establishing proof of proper notice on De La Vega.

Additionally, the alleged later updated agreement, published October 17, 2024, is potentially inapplicable to De La Vega's claims, as there is dispute as to when De La Vega was terminated. De La Vega attests he was terminated on October 5, 2024, contrary to Ryan Kennings' assertion (which also lacks any specific documentary evidence) that De La Vega was terminated on October 26, 2024. (Opp., De La Vega Decl. ¶ 6; Mot., Kennings Decl. ¶ 6.) If De La Vega's attestation is correct, De La Vega could not have impliedly agreed to the updated terms, even if sent to his work e-mail inbox, as De La Vega was no longer an employee who could access said e-mail. (Opp., De La Vega Decl. ¶ 6.)

Therefore, the Court denies
the motion, without prejudice.

V. CONCLUSION

Based on the foregoing, Defendants Charter Communications, LLC and Gail Kodama's motion
to compel arbitration is DENIED, without prejudice.

De La Vega is ordered to give notice.

DATED:

September 15, 2026

Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if
they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email
to the court at SMCDEPT730@lacourt.org with the Subject line "SUBMIT" followed
by the case number. The body of the email must include the hearing date and
time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should
arrange to appear remotely (encouraged) or in person for oral argument. You
should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion

off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.